

MAXINE'S PICK · REGULATORY WATCH

CUI Safeguarding Rulemaking Doesn't Pause When CMMC Does

CMMC Phase 2 is paused, but that's only one clock. A CUI safeguarding rule and a CMMC reform RFI are moving on separate tracks - here's what to watch.

BY MAXINE · READING TIME · 5 MIN · CMMC · CUI · DFARS · RULEMAKING

A single paused program has absorbed the entire industry's attention this month, and that is the mistake worth naming out loud: CMMC Phase 2 is one compliance clock among several running on a defense contractor's wall, and it is the only one that stopped. Coverage of the Pentagon's certification pause has been thorough - deservedly, since it touches assessment deadlines directly. But a contractor who reads "CMMC paused" as "DIB compliance paused" is watching one clock and assuming the room went quiet.

FIELD COPY
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CMMC

What's actually moving

Set the certification pause aside for a moment and look at what else surfaced in the trade and legal press this month. A client alert from Mayer Brown described the FAR Council advancing a revised framework for CUI safeguarding and incident reporting, running on its own rulemaking track and explicitly separate from the CMMC pause. JD Supra's roundup characterized it as part of a broader "wave" of proposed rules touching CUI, foreign ownership/control/influence (FOCI), and quantum readiness. And ArentFox Schiff flagged a CMMC Reform Task Force request for information - an open invitation for contractors to weigh in on what the certification regime becomes next, rather than wait to receive it as a finished rule.

None of that is the same instrument as CMMC Phase 2, and none of it was paused by the same memo. A FAR Council proposal on CUI safeguarding moves through the FAR rulemaking process - proposed rule, comment period, final rule - on its own calendar. A reform task force soliciting industry input is, by definition, still gathering information, not enforcing anything yet. Three distinct tracks, three distinct postures: one paused, one proposed, one open for comment. We read the source alerts named above; we did not independently pull the FAR case docket or the RFI's Federal Register notice this cycle, and we're not going to attach a comment deadline or a docket number to this piece that we haven't verified ourselves - check [regulations.gov](https://www.regulations.gov) and [acquisition.gov](https://www.acquisition.gov) directly before you build a filing calendar around any secondhand date.

Why this isn't just the pause story again

The distinction between "CMMC Phase 2 paused" and "your DFARS obligations didn't" is real and we made it in detail in last week's companion piece. This is a narrower, sharper point: the pause is not even the boundary of what's in motion. DFARS 252.204-7012 has required safeguarding covered defense information to NIST SP 800-171 and reporting a cyber incident within 72 hours of discovery since 2017, and nothing in this month's digest touches that clause. What's different about the FAR Council proposal and the reform RFI is that they aren't reaffirming the status quo - they're actively trying to change the *next* version of the safeguarding and reporting framework, on a track that has nothing to do with whether CMMC Phase 2 assessments are currently scheduled.

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SEPARATE CUI/CMMC
RULEMAKING OR REVIEW
TRACKS MOVING THIS MONTH
- ONLY ONE OF THEM
PAUSED

72 hrs

DFARS 252.204-7012'S CYBER
INCIDENT REPORTING
CLOCK, UNMOVED BY ANY OF
IT

◆ READ THE COMPANION PIECE

For what the CMMC Phase 2 pause itself does and doesn't change, see "[CMMC Phase 2 Is Paused. Your Compliance Clock Isn't.](#)" This piece is about the other tracks moving beside it.

A paused certification program and an open rulemaking are not the same kind of quiet - one is a program on hold, the other is a program being written, and only a contractor who reads past the headline can tell them apart.

What a DIB operator should do with this

- **Split your tracking by instrument, not by headline.** "CMMC" news and "CUI safeguarding" news are being reported together this month because they landed in the same week, not because they're the same rulemaking. Follow the FAR case and any DFARS case separately from the CMMC program office's own announcements.
- **Treat the reform RFI as a filing opportunity, not a footnote.** If your program has scar tissue from a specific CMMC assessment mechanic - scoping ambiguity, evidence format, C3PAO scheduling - an open RFI is the cheapest leverage you'll get to put that on the record before the next version locks it in. Submit through your own counsel or industry association; don't wait for someone else's comment to cover your case.
- **Don't let "proposed" read as "optional."** A FAR Council proposal on CUI safeguarding and incident reporting, once final, changes what your System Security Plan and incident-response plan need to say. Build the gap analysis now, when it's a draft you can influence, not later, when it's a final rule you're implementing under deadline.
- **Keep operating to the rule that's actually in force.** DFARS 7012 and NIST SP 800-171 are the floor right now, full stop, regardless of how any of these three tracks resolves. **MacTech Codex** keeps mapping controls to evidence against that standing baseline; EnclaveWatch keeps producing signed audit trail on CUI systems on the same weekly cadence - neither is built to key off a rulemaking's status, because the underlying requirement doesn't wait for one to finish.

What this does not claim

We have not read the FAR Council's proposed rule text, the reform task force's RFI notice, or any comment deadline attached to either - we read the client-alert coverage named above, not the primary dockets, and we're saying so rather than dressing up secondhand reporting as verified fact. We don't know whether the CUI safeguarding proposal will survive comment intact, whether the reform task force's findings will reinstate Phase 2, revise it, or replace it, or when either process concludes. If you need dates or docket numbers to plan around, get them from regulations.gov and the FAR case tracker directly, not from a newsletter summarizing a summary.

The operating posture

The programs that stay ahead through a season like this aren't the ones that guessed right about which rule survives - they're the ones that kept a live map of every track touching their obligations, instead of collapsing them into one headline. If you want a second set of eyes on where your CUI safeguarding and incident-reporting posture actually stands while these tracks are still open, **start a readiness conversation** or **talk to us**; we'll tell you plainly which of these changes affects your contracts and which doesn't. ♦

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